

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS WRIGHT ELECTRO MECHANICAL
CORP. D/B/A CURTISS-WRIGHT STEAM AND
AIR SOLUTIONS, STEPHANIE LANIER, AND
SHANE SABLITSKY,

Defendants.

C.A. No. 2:25-cv-00405-RMG-MGB

**DEFENDANTS' MOTION FOR SANCTIONS FOR NON-COMPLIANCE
WITH COURT ORDERED DISCOVERY**

Pursuant to Federal Rule of Civil Procedure 37(b) and (c), Defendants Curtiss-Wright Electro-Mechanical Corporation, Stephanie Lanier, and Shanie Sablitsky (collectively, “Defendants”), by and through undersigned counsel, move for sanctions based on Plaintiff’s failure to serve the discovery responses required by January 30, 2026, as ordered in this Court’s December 15 Order resolving the parties’ outstanding discovery motions. Defendants seek the sanctions that the Court made clear to Plaintiff would be imposed, including dismissal of her claim for intentional infliction of emotional distress and any claims for emotional distress damages. Defendants also seek sanctions that reasonably flow from her blatant disregard of the Court’s Order and her failure to meaningfully engage in discovery—namely, dismissal of those causes of action or claims for damages for which Plaintiff refused to provide discovery. Defendants also seek an award of the attorneys’ fees incurred in pursuing this discovery.

I. BACKGROUND

A. Underlying Discovery Requests.

Defendants' discovery requests generally seek information regarding the factual basis for Plaintiff's causes of action and claimed damages. Prior to Defendants' November 5 Motion to Compel (ECF No. 207)—the motion that ultimately prompted the Court's December 15 Order—Plaintiff had not meaningfully participated in the discovery process. Despite Defendants' production of thousands of pages of documents and the appearance of ten witnesses for deposition, Plaintiff repeatedly filed motions seeking sanctions against Defendants for alleged non-cooperation¹ while simultaneously refusing to provide even the most basic information supporting her claims.

Nearly two months after the Court ordered compliance, Plaintiff has still largely failed to meaningfully participate in discovery and has willfully, and without justification, withheld essential information related to her claims from Defendants. Defendants' discovery requests seek, among other things, evidence of Plaintiff's alleged whistleblower reports; administrative complaints; proof of monetary damages; and evidence supporting her assertion that she suffered emotional distress as a result of Defendants' conduct. Plaintiff objected to these requests on numerous grounds, including unfounded assertions that the information sought is irrelevant and disproportionate to the needs of the case.

B. The Court's December 15th Discovery Order.

On December 15, 2025, in granting both parties' Motions to Compel, this Court overruled Plaintiff's objections and held, among other things, that Plaintiff was mandated to produce the following discovery by January 30, 2026:

¹ Plaintiff also filed roughly a dozen discovery-related motions directed at Defendants and even more directed at third parties in this case.

1. Plaintiff's tax returns and records of income from all sources ("Accordingly, Defendants' Motion to Compel is **GRANTED** as to Plaintiff's employment and financial records. Plaintiff is **ORDERED** to supplement her responses to the aforementioned requests on or before January 30, 2026."(ECF No. 251 p. 10);
2. All of Plaintiff's social media posts related to this case ("What is more, the requested information regarding Plaintiff's social media accounts is relevant and narrowly tailored to Plaintiff's claims.... Again, Plaintiff, should produce this information on or before January 30, 2026.") (ECF No. 251 p. 11);
3. All documents contained on the flash drive submitted to the Court ("Plaintiff is **ORDERED** to independently produce to Defendants copies of the records she submitted to the Court via flash drive on or about May 13, 2025. Plaintiff shall have until January 30, 2026, to produce these records.) (ECF No. 251 p. 4-5); and
4. All submissions Plaintiff made to federal agencies regarding this matter are relevant and must be produced ("Plaintiff is therefore **ORDERED** to provide Defendants "all documents she provided to or received from, and all communications she had with, the Office of the Nabal Inspector General related to complaints she filed against Curtiss-Wright on or before January 30, 2026." (ECF No. 251, p. 10).

The Court further provided Plaintiff the choice to either (1) forego her intentional infliction of emotional distress claim and her claims for emotional damages or (2) produce her medical and therapy records. ECF No. 251, p. 15. The Court expressly stated that Plaintiff's failure to provide Defendants with "full and fair discovery" into her emotional distress and damages claims will be viewed as Plaintiff's "election to waive her intentional infliction of emotional distress and emotional damages claims." *Id.*

Additionally, in denying Defendants' request for attorneys' fees and their request that the Court preclude Plaintiff from seeking financial or emotional damages should she fail to produce supporting evidence, the Court made clear that if Plaintiff did not comply with her discovery obligations by January 30, 2026, Defendants could seek appropriate sanctions. *See* ECF No. 251, n. 4.

C. Discovery Following the Court's Order.

The only discovery that Defendants have received from Plaintiff since the Court's December 15 Order are a single YouTube video related to her claims, which she produced on January 1, 2026, and screenshots of some text messages with Jeff Womack, produced on January 3. On January 5, 2026, Plaintiff filed a document titled "Reply, Clarification, and Record Preservation Regarding Order ECF 251" ("Plaintiff's Reply"), which suggested that Plaintiff had no intention of producing anything else. *See* ECF No. 272. In that filing, Plaintiff confirmed that she intended to pursue her emotional distress claims, including her claim for Intentional Infliction of Emotional Distress. However, Plaintiff also stated that she did "not consent to unlimited disclosure of medical or psychotherapy records" and did "not agree to blanket medical or psychotherapy records," thereby effectively reasserting objections the Court had already overruled. (*Id.* at 1.) Plaintiff further claimed that her pre-November 5 discovery responses fully satisfied her obligation; she identified additional categories of discovery she had not produced, accompanied by arguments that either the Court's Order did not require her to provide those materials or that she remained entitled to object.

On January 15, Defendants sent Plaintiff a letter outlining the specific discovery required under the Court's December 15 Order and quoted the Order directly to make clear to Plaintiff what she was obligated to produce by January 30, 2026. *See* Ex. A - Defendants' Letter to Plaintiff

Regarding Outstanding Discovery. Plaintiff did not respond and, to date, has not served Defendants with any of the discovery identified in the January 15 letter.

On January 30, Defendants served Plaintiff with their responses to the discovery requests authorized by the Court's December 15 Order. After business hours that same day, Defense Counsel contacted Plaintiff to inquire when Defendants could expect to receive Plaintiff's court-ordered discovery responses. *See* Ex. B - January 30 Emails. Plaintiff did not respond. Instead, on February 1 and February 2, Plaintiff sent a series of unrelated emails concerning Defendants' discovery responses. *See* Ex. C - February 2 Emails. To date, Plaintiff has not provided any additional documents as ordered by this Court on December 15, 2025.

II. LEGAL ARGUMENT

Plaintiff has willfully refused to comply with her discovery obligations, and since discovery has closed, her noncompliance has caused substantial and irreparable prejudice to Defendants. Despite Defendants' repeated requests, extensive motion practice, and a direct Court Order, Plaintiff has produced no documents supporting her claims of emotional or financial damages allegedly caused by Defendants. Defendants, meanwhile, have been forced to expend significant time, money, and resources in repeated—but unsuccessful—efforts to obtain the most basic discovery underlying Plaintiff's claims.

Defendants respectfully request that the Court impose decisive sanctions. At this stage, Defendants face irreversible prejudice. Discovery has closed, and even if the Court were to reopen it—this Court stated adamantly it would not—Plaintiff has already defied a clear discovery order, and obtaining this information would require Defendants to incur additional and unnecessary time and expense—without any indication that Plaintiff would comply even under renewed deadlines.

A. Plaintiff's Claims for Intentional Infliction of Emotional Distress and Emotional Damages Have Been Waived and Should Be Dismissed with Prejudice.

This Court has been incredibly clear, the records that Defendants seek regarding Plaintiff's claims for emotional distress and emotional damages "are clearly relevant to this civil action." ECF No. 251, p. 12. The Court found that Plaintiff waived the psychotherapist privilege on both grounds for waiver. *Id.*, at 14. First, she brought a claim for intentional infliction of emotional distress and requests compensatory damages for pain and suffering, emotional distress, and loss of enjoyment of life. *Id.*, ECF No. 79 at 17-18. Second, Plaintiff offered to introduce certain chosen evidence of her emotional condition, which ostensibly contains privileged information. ECF No. 251 at 14.

The Court found that Plaintiff waived the privilege but generously gave Plaintiff the option to elect whether to abandon her intentional infliction of emotional distress claim and her claim of emotional damages, which would make the requested records no longer relevant, or proceed with her claims and provide Defendants with "full and fair discovery" into those claims including providing supplemental Responses to Defendants' Requests Nos. 7, 8, and 9 on or before January 30. *Id.*, p. 15. This Court explicitly stated that Plaintiff's failure to provide Defendants with full and fair discovery into her emotional distress and damages claims will be viewed as Plaintiff's "election to waive her intentional infliction of emotional distress and emotional damages claims." *Id.*

Plaintiff has since claimed that she wants to proceed with her intentional infliction of emotional distress and emotional damages claims, but she has failed to produce her therapy records or any records to support those claims. ECF 272, p. 1. Defendants reminded Plaintiff multiple times of her duty to provide discovery, including on January 15 and 30, 2026, but she has not

produced any discovery related to her intentional infliction of emotional distress claim and her claim of emotional damages. As a result, and as the Court recognized, Defendants cannot litigate these claims without full, or even fair, discovery into them. Therefore, in accordance with the Court's clear and unambiguous instruction, Plaintiff has waived her claims for intentional infliction of emotional distress and for emotional damages and so those claims should be dismissed with prejudice.

B. Plaintiff Appears to Agree that Dismissal of the Action Would Be Appropriate Here.

Like with Plaintiff's claims for intentional infliction of emotional distress and emotional-distress damages, Plaintiff has failed to produce any discovery supporting the majority of her causes of action or her claims for damages. On December 6, 2025, Plaintiff argued that a court may exercise its inherent authority to impose "terminating sanctions" when a party engages in "a pervasive, willful, and bad-faith pattern of litigation misconduct that makes a fair adjudication impossible," including "obstructing discovery; withholding or misrepresenting evidence, ... and manipulating procedural timelines for strategic advantage." *Plaintiff's Motion for Default Judgment as a Terminating Sanction For Defendants' Bad-Faith Litigation Misconduct*, ECF No. 235, p.1. Nine days before this Court issued the discovery order she later defied, Plaintiff cited the following standard: Rule 37(b)(2)(A) authorizes courts to impose severe sanctions—such as striking pleadings, prohibiting evidence, or entering default judgment—when a party disobeys discovery orders. *Id* at p. 6. She further acknowledged that the Fourth Circuit requires courts to consider "(1) whether the non-complying party acted in bad faith, (2) the amount of prejudice that noncompliance caused to the adversary, (3) the need for deterrence of the particular sort of non-compliance, and (4) whether less drastic sanctions would have been effective." *Belk v. Charlotte-Mecklenburg Bd. of Educ.*, 269 F.3d 305, 348 (4th Cir. 2001). Plaintiff

concluded that “[w]illful obstruction of discovery and disregard of court instructions satisfies this standard.” *See* ECF No. 235, at 6–7. Plaintiff argued at the time that “[i]f the Court finds that a party acted intentionally to deprive another party of evidence, it may impose terminating sanctions...” *Id.*

With discovery now closed, Defendants have no recourse and have been deprived of the evidence necessary to evaluate whether Plaintiff can establish the prima facie elements of her claims or whether she suffered any cognizable damages. This Court explicitly stated—in all capital letters—at the conclusion of its December 15 Discovery Order: “NO FURTHER EXTENSIONS OF THE DISCOVERY DEADLINE WILL BE GRANTED.” Despite the unambiguous directive of the Court, Plaintiff affirmatively withheld substantially all material discovery requested by Defendants and indicated she would continue to withhold it by reasserting her objections in a January 5 Reply to the Court’s Order. Defendants repeatedly reminded Plaintiff of her obligation to provide this discovery by the deadline, yet she still failed to produce the requested discovery. Plaintiff willfully withheld evidence that she is known to possess (including files on the flash drives submitted to the Court, copies of complaints that she made to the Department of the Navy Inspector General, and documents she received through FOIA requests and subpoenas) in direct defiance of this Court’s Order, leaving Defendants with no fair opportunity to evaluate or respond to her claims.

Terminating sanctions—specifically, dismissal of Plaintiff’s causes of action and claims for damages with prejudice—are appropriate here. First, Plaintiff cannot wield her pro se status as both sword and shield. Courts within the Fourth Circuit have dismissed entire pro se actions under similar circumstances and this is one of the more egregious cases. *See, e.g., Poston v. Lower Florence Cty. Hosp. Dist.*, 2021 U.S. Dist. LEXIS 106748 (D.S.C. Jun. 7, 2021) (dismissing a pro

se plaintiff's entire case with prejudice after failing to comply with a discovery order compelling her to respond to the defendant's discovery leaving defendant lacking information about the nature of her claims and the evidence she has to prove her claims); *Prince v. Casual Furniture World of Myrtle Beach*, 2013 U.S. Dist. LEXIS 65667 (Apr. 16, 2013)(dismissing a pro se plaintiff's Title VII action where the pro se plaintiff failed to provide the defendants with requested discovery after a court order, thereby preventing "Defendants from discovering the relevant facts of the case and preparing their defense."); *Woodbury v. Victory Van Lines*, No. PX-18-1275, 2019 U.S. Dist. LEXIS 83424 (D. Md. May 17, 2019) (dismissing a pro se plaintiff's case with prejudice for failing to produce court-ordered discovery following a motion to compel); *Gill v. Coca-Cola Bottling Co. Consol.*, 2021 U.S. Dist. LEXIS 5021 (W.D.N.C. Jan. 9, 2021) (dismissing entire pro se action with prejudice for failing to substantially respond to discovery after a court order, and ignoring multiple communications from defense counsel attempting to obtain the discovery)² *Neil v. Warren Cnty. Bd. of Educ.*, 2023 U.S. Dist. LEXIS 189890 (E.D.N.C. Oct. 3, 2023) (dismissing entire pro se employment action with prejudice after Plaintiff did not serve court ordered supplemental discovery responses and failed to attend her deposition)³; *see also Mackin v. Charles Schwab & Co.*, 2019 U.S. Dist. LEXIS 3295 (D. Md. 2019)⁴ (declining to dismiss case because Plaintiff made a good faith attempt to comply with the court order but barring Plaintiff from using any evidence

² The Court in *Gill* noted that the pro se plaintiff's refusal to even engage in dialogue with defense counsel regarding the outstanding court-ordered discovery as particularly egregious.

³ Both *Neil* and *Gill* also note that when a plaintiff appears to have no means to pay a monetary penalty or is proceeding in forma pauperis, an imposition of monetary sanctions is less likely to be effective. Both courts found that this weighed in favor of dismissing the action.

⁴ *Mackin* makes clear that, even under a lenient standard, a pro se plaintiff must make a good-faith effort to provide a defendant with the discovery necessary for the defendant to assert a defense—particularly after the court has ordered the plaintiff to do so—in order to avoid dismissal under Rule 37(d). Here, even after Defendants sent Plaintiff multiple reminders of her obligations and waited over a week past the deadline to see if Plaintiff would produce discovery, Plaintiff made no good-faith attempt to comply with her court-ordered discovery obligations.

that had not been produced). Second, as demonstrated by her own motion for terminating sanctions filed only days before she was ordered to produce discovery to Defendants, Plaintiff fully understood that noncompliance with a court-ordered discovery deadline could result in dismissal. Despite this knowledge, she intentionally elected to defy the Court's Order.

The Court's December 15 Order made clear the consequences for failing to comply with its discovery order, including that Defendants could move for sanctions, and Plaintiff is fully aware of the sanctions for willfully withholding substantial discovery because she filed a motion seeking the very sanction applicable in this scenario just days before the Court issued its Order.

Under these circumstances, it would be inequitable to permit Plaintiff to now invoke her pro se status as a basis for leniency or to avoid the consequences of her deliberate, willful misconduct. *See Gill v. Coca-Cola Bottling Co. Consol.*, 2021 U.S. Dist. LEXIS 5021, *13 (W.D.N.C. Jan. 9, 2021) ("Knowing full well the potential consequences of failing to comply with this Court's Order, Plaintiff has not taken good faith steps to comply with the Court's Order. As such, the Amended Complaint will be dismissed, as there is no other effective sanction that could be imposed to stop such misconduct.").

C. Plaintiff Defied the Discovery Order in Bad Faith.

Plaintiff had no intention of complying with the Court's discovery order. She made this clear in the affirmation she filed on January 5, 2026, in response to the Court's December 15 Order. In that filing, Plaintiff stated that she intended to proceed with her emotional-distress-based claims, that she would not authorize release of her medical or psychotherapy records, and that she believed the Court's Order did not require her to produce additional discovery to Defendants. (ECF No. 272 at 1, 3-5.) In light of these assertions, Defendants sent Plaintiff a letter quoting the plain language of the Order and explaining the discovery she was required to produce. *See Ex. A.* Plaintiff did not

respond. After the January 30, 2026, deadline expired, Defendants asked Plaintiff whether she intended to produce the court-ordered discovery. Plaintiff again did not respond. *See* Ex. B.

As explained in Defendants' January 15 letter, Plaintiff has no good-faith basis for refusing to provide discovery. The Court's Order is unambiguous. For example, it states:

"However, if Plaintiff continues to pursue her claims for intentional infliction of emotional distress and/or emotional damages, Defendants are entitled to full and fair discovery regarding those claims. Thus, if Plaintiff elects to proceed with such claims, she must provide supplemental responses to Request Nos. 7, 8, and 9 on or before January 30, 2026." ECF No. 251, at 15.

Plaintiff has now had more than four months to collect and produce documents responsive to Defendants' discovery requests, all of which seek basic records directly relevant to her claims. Given the clarity of the Court's directive and the ample time provided, Plaintiff's continued noncompliance is not justified.

D. The Prejudice Caused to Defendants at This Juncture Is Irreparable.

There is no feasible way for Plaintiff's causes of action or claims for damages to proceed at this stage. Although the Court has extended discovery multiple times, discovery is now closed. Plaintiff's refusal to comply with her discovery obligations has deprived Defendants of the ability to evaluate even the prima facie elements of her claims. "A defendant cannot be expected to defend a case where the person bringing the action refuses to participate in the discovery process." *Poston v. Lower Florence Cty. Hosp. Dist.* 2021 U.S. Dist. LEXIS 106748 (D.S.C. Jun 7, 2021).

For example, Plaintiff asserts a whistleblower retaliation claim, yet she has produced no evidence—beyond her own self-serving assertions—that she ever filed a whistleblower complaint

while employed by Defendant Curtiss Wright⁵. Plaintiff refused to produce court-ordered documentation of whistleblower complaints she submitted to government agencies. Likewise, Defendants cannot determine whether Plaintiff suffered any economic damages that could expose them to liability because Plaintiff refused to produce her financial records or any evidence of income or losses. These are only two examples. Throughout this litigation, Plaintiff has repeatedly asserted that her damages and Defendants' liability are substantial, yet she continues to withhold all evidence necessary for Defendants to fully and fairly assert defenses. With discovery closed, Defendants have no means of obtaining this information.

Even if the Court were to reopen discovery, Defendants would suffer further prejudice. An extension would permit Plaintiff yet another opportunity to manipulate deadlines driving up the cost of litigation that has already been unreasonably protracted. Given the history of this case, another extension would almost certainly generate additional unnecessary and burdensome motion practice. Such a result is untenable and should be avoided.

Allowing Plaintiff to proceed under these circumstances would be fundamentally unfair. Defendants cannot develop an informed litigation strategy when Plaintiff refuses to provide even the most basic information supporting her claims or substantiating the alleged value of her case.

Furthermore, the cases cited above make clear that the prejudice caused by denying a defendant discovery into the factual and legal basis of a pro se plaintiff's claims warrant dismissal. In *Poston v. Lower Florence Cnty. Hosp. Dist.*, the pro se plaintiff repeatedly failed to respond to written discovery. 2021 U.S. Dist. LEXIS 106748, *2-3. The defendant sent multiple letters

⁵ In the deposition of Antonio Coleman, Plaintiff presented a Naval Inspector General online complaint fillable pdf form as an exhibit. This document has never been produced to Defendants despite repeated requests, even after an explicit objection made on the record during that deposition. Defendants have no evidence that this complaint form was ever submitted or that the document used at the deposition was created during Plaintiff's employment.

reminding her of her obligation to provide responses, but she offered no reply. *Id.* After continued non-response, the defendant moved to compel and sought sanctions. *Id.* at 3. The court granted the motion to compel and ordered the plaintiff to respond within 15 days but declined to impose sanctions at that time. *Id.* Even then, the pro se plaintiff did not comply. The defendant subsequently moved to dismiss for failure to respond to discovery and failure to comply with court directives. *Id.* at 3-4. The court found that the plaintiff's repeated refusal to participate in discovery prejudiced the defendant's ability to prepare a defense and demonstrated disregard for the discovery process. *Id.* at 7. It dismissed the action with prejudice, concluding that lesser sanctions were ineffective in light of the plaintiff's persistent noncompliance. *Id.* at 8.

Plaintiff has been granted far more leniency in this case, yet her conduct has been significantly worse. Plaintiff has had four months to respond to Defendants' discovery—far longer than the brief extensions afforded in *Poston*. And rather than merely ignoring discovery requests, Plaintiff affirmatively pursued her own extensive discovery while willfully withholding nearly all discovery requested by Defendants. Whereas the pro se plaintiff in *Poston* simply failed to respond by the deadline, Plaintiff went further by preemptively asserting that the Court's December 15 Order imposed no obligation on her at all. Plaintiff has now had nearly three times the period granted in *Poston* and has still refused to comply.

In *Poston*, the court concluded that a defendant cannot be expected to defend an action where the plaintiff refuses to provide information about the nature of her claims and the evidence she intends to use. *Id.* at 7. The same rationale applies with even greater force here. In *Poston*, there was no indication that the plaintiff intentionally manipulated the discovery process; here, Plaintiff has actively denied Defendants the discovery to which they are entitled while continuing to demand discovery from Defendants. The court in *Poston* expressly noted that a defendant should

not be forced to defend an action when the plaintiff refuses to participate in discovery. The imbalance here is even more pronounced: Plaintiff has not refused to participate in discovery altogether—she has refused to participate only in Defendants’ discovery, while insisting on full participation in her own. Thus, if dismissal with prejudice was appropriate in *Poston*, where the plaintiff’s conduct was less egregious, it is even more warranted in this case given Plaintiff’s willful, strategic, and obstructive discovery abuses.

Likewise, in *Prince v. Casual Furniture World of Myrtle Beach*, the pro se plaintiff failed to respond to the defendant’s first set of interrogatories and first requests for production. 2012 U.S. Dist. LEXIS 65667 *2. The defendants moved to compel and sought sanctions. *Id.* at 2-3. The court initially denied sanctions because the plaintiff had not yet been warned of the potential consequences but granted the motion to compel, directing the plaintiff to provide full discovery responses within fifteen days and noting that defendants could seek sanctions if she failed to comply. *Id.* at 3. The pro se plaintiff did not respond by the court-ordered deadline. *Id.* The court found that the plaintiff’s failure to participate in discovery prevented the defendants from discovering relevant facts and preparing their defense. *Id.* at 5. As in *Poston*, the court held that a defendant cannot be expected to defend an action when the plaintiff refuses to engage in the discovery process. *Id.*

In both *Prince* and *Poston*, the District of South Carolina dismissed pro se plaintiffs’ cases because they failed to participate in discovery. In each case, the court afforded the plaintiff between fifteen and twenty-five days after the motion to compel to cure their deficiencies. Here, Plaintiff’s conduct is more egregious. First, Plaintiff was given at least two times the amount of time granted in *Prince* and *Poston* to comply with this Court’s December 15 Order, yet she has still not produced the required discovery despite repeated reminders. Second, unlike the pro se plaintiffs in those

cases, Plaintiff did not simply fail to participate; she aggressively pursued her own discovery through extensive motion practice while simultaneously refusing to provide Defendants with even basic discovery concerning her causes of action or claimed damages.

Third, Plaintiff is fully aware of the consequences of her conduct. Not only did the Court's December 15 Order expressly warn that claims would be dismissed if she continued to withhold information, but Plaintiff herself moved for dismissal sanctions against Defendants—citing the same legal authority—just days before that Order was issued. Fourth, this is not a case of simple neglect. On January 5, Plaintiff filed a Reply expressly stating that she would not provide the court-ordered discovery and then refused to engage in any dialogue with defense counsel.

Given that dismissal was warranted in *Prince* and *Poston* because of the prejudice to the defendants under less severe circumstances, Plaintiff's willful and strategic refusal to comply with discovery in this case provides even stronger grounds for dismissal with prejudice.

After more than a year of intensive and costly litigation, Defendants are forced to continue expending resources despite the absence of evidence that Plaintiff suffered damages or any evidence supporting most of her claims—all because Plaintiff has deliberately withheld required discovery.

E. Lesser Sanctions Are Insufficient.

Furthermore, simply prohibiting Plaintiff from using documents she failed to produce in discovery, though certainly an appropriate sanction and one that Defendants request in the alternative, will not cure the prejudice to Defendants. Plaintiff has already relied on documents she refused to produce throughout this litigation. For example, although Defendants requested Plaintiff's alleged whistleblower complaint to the Office of the Navy Inspector General—and although Plaintiff objected to producing it, asserted it was irrelevant, and still has not produced

it—Plaintiff nevertheless used an online form that she claims to be a copy of her filed complaint during the deposition of Antonio Coleman. Plaintiff's refusal to produce documents she actively uses, combined with her apparent concealment of documents in her possession, makes it likely that she will attempt to introduce additional undisclosed materials at summary judgment or at trial.

Plaintiff's conduct regarding FOIA responses further illustrates this problem. On January 30, Plaintiff requested information from Defendants based on a FOIA response she claimed to have received from a government agency. *See* Ex. B. Defendants previously requested all FOIA responses Plaintiff received in connection with this lawsuit, yet in her November discovery responses, Plaintiff stated that she had never received any such documents and never supplemented that response. *See* Ex. D - Plaintiff's Responses to Defendants' First Requests for Production. When Defendants asked Plaintiff to produce the FOIA response referenced in her January 30 email, Plaintiff again failed to do so. *See* Ex. B. This conduct provides additional evidence that Plaintiff has concealed responsive documents that she intends to use in this case while denying Defendants the opportunity to review them.

Given Plaintiff's refusal to comply with the Court's most recent discovery order and her pattern of using and referencing documents she has withheld, there is no reason to believe she will comply with future orders. Continued litigation will inevitably result in numerous motions in limine and other avoidable disputes, driving up costs for Defendants and wasting judicial resources.

In any event, even if the Court were to bar Plaintiff from using evidence she withheld in discovery, she still cannot prove damages on her claims. And given Plaintiff's demonstrated propensity for excessive motion practice, Defendants would suffer further prejudice by being forced to litigate claims for which Plaintiff cannot establish damages.

Because Plaintiff has willfully and in bad faith (1) refused to produce discovery necessary to support her claimed damages, and (2) refused to produce discovery necessary to establish basic elements of her causes of action—and because discovery is now closed—further litigation serves no purpose other than increasing Defendants’ costs and consuming scarce judicial resources. A terminating sanction is therefore warranted. Plaintiff’s causes of action and claims for damages for which she has withheld evidence should be dismissed with prejudice.

Plaintiff has acted willfully and without justification, causing irreparable prejudice to Defendants by withholding basic discovery in this action. For the reasons stated above, Defendants respectfully request that the Court dismiss this case with prejudice.

It is well within the Court’s discretion to do so, and the case law cited in this brief confirms that dismissal with prejudice is warranted when a pro se plaintiff refuses to comply with discovery. Plaintiff has withheld evidence, claimed to possess additional undisclosed materials, produced no evidence of damages, and failed to support most of her causes of action—all consistent with the pattern reflected in the procedural history. Defendants therefore ask the Court to dismiss the action in its entirety, rather than permit Plaintiff to continue pursuing claims for which she has provided no factual support and no evidence of damages.

F. If the Court Were to Impose Lesser Sanctions, They Must Be Severe.

In the alternative, any sanction short of dismissal with prejudice must be severe to ensure that Plaintiff who acted willfully and for strategic gain to deprive Defendants of the information necessary to defend against her causes of action and claims for damages is not allowed to benefit from that abusive litigation tactic. Defendants request that the Court strike those causes of action and claims for damages for which Plaintiff willfully withheld evidence, as contemplated by the

Court's December 15 Discovery Order and bar any evidence that Plaintiff did not produce to Defendants in discovery.

The Court already stated that it would dismiss Plaintiff's claims for intentional infliction of emotional distress and emotional damages if Plaintiff failed to produce evidence regarding those damages. She failed to do so, and so dismissal should follow.

Likewise, although Defendants sought discovery relevant to each of the claims below, Plaintiff provided no factual basis whatsoever to allow Defendants to evaluate their truth or falsity, and Defendants would face prejudice by having to engage in additional motion practice, with respect to these claims:

1. Although Defendants sought basic information to establish a factual basis that Plaintiff is entitled to compensatory damages by requesting tax returns, records of income from all sources, or records of any income through entities that she controls, Plaintiff refused to provide documentation sufficient for Defendants to assess whether she suffered any economic damages at all. Thus Plaintiff's claim for compensatory and economic damages should be dismissed with prejudice.
2. Defendants sought basic information about Plaintiff's whistleblower retaliation claim including a request that she produce all documents that she provided or received from, and all communication with, the Office of the Naval Inspector General, in relation to any complaint that she filed against Curtiss-Wright. Plaintiff refused to produce any documentation regarding any whistleblower complaints to Defendants⁶. Thus, Plaintiff's whistleblower retaliation claim should be dismissed with prejudice.

⁶ Plaintiff did present an online complaint form to a witness at a deposition over the objection of defense Counsel. The exhibit is a fillable pdf with no indication it was ever submitted.

3. Defendants sought information about Plaintiff's invasion of privacy and illegal interception of communications claims which Plaintiff claims there is evidence of on the flash drive that she submitted to the Court. Plaintiff still refuses to submit all the documentation submitted on that flash drive to Defendants. To date, Plaintiff has also not produced any evidence or discovery that she received from her third-party subpoenas related to her invasion of privacy and illegal interception of communications claims despite Defendants requesting all information that Plaintiff receive from third parties regarding her claims. Thus, Plaintiff's invasion of privacy and illegal interception of communications claims should be dismissed with prejudice.

In addition, to date, Plaintiff has not produced material discovery on the majority of her remaining claims, including her Title VII claim, her 42 U.S.C. § 1981 claim, her ADEA claim, her hostile work environment claim, her retaliation claim, her slander claim, her intentional interference with contractual relations claim, and her civil conspiracy claim. Defendants pray that the Court bar Plaintiff from using evidence that she has withheld from Defendants to support any remaining claims.⁷

Defendants further request an award of attorneys' fees⁸ incurred in moving to compel the underlying discovery and in preparing this motion, as a result of Plaintiff's intentional and bad-faith refusal to cooperate in the discovery process.

⁷ Defendants note that, given the history of this case, anything short of outright dismissal of a claim will be interpreted by Plaintiff as permitting her continued noncompliance and will inevitably lead to additional motion practice. Defendants respectfully request that the Court dismiss this case with prejudice—or, at minimum, dismiss the affected claims—rather than invite further costly and unnecessary motion practice resulting from a partial or incomplete remedy.

⁸ Defense Counsel will submit an Affidavit in Support of Attorneys' Fees at the Court's Request.

Respectfully submitted this 13th day of February, 2026.

s/ T. Chase Samples

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ATTORNEYS FOR DEFENDANTS

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-RMG-MBG

CERTIFICATE OF SERVICE

The undersigned certifies that on February 13, 2026, a copy of the foregoing DEFENDANTS' MOTION FOR SANCTIONS FOR NON-COMPLIANCE WITH COURT ORDERED DISCOVERY has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples